BOARD OF SUPERVISORS

AGENDA DATE: May 19, 2026

TO: Board of Supervisors

FROM: Raven Williams, Department Analyst, Public Works

REVIEWED BY: Christopher Blunk, P.E., Director of Public Works

SUBJECT: Request from Department of Public Works to adopt the Resolution to place a Ballot Measure, County Service Area No. 29 Supervisorial District 3

RECOMMENDATION: 1) Adopt the Resolution of the Marin County Board of Supervisors calling for an election to be consolidated with the November 3, 2026 general election adopting an increase in a special tax upon parcels located within County Service Area No. 29 for the purpose of ongoing maintenance dredging in Paradise Cay (CSA 29) along with the north and south entry channels to San Francisco Bay effective July 1, 2027(Attachment 1); and 2) Authorize the County Registrar of Voters to take appropriate action to place the measure on the November 3, 2026 General Election ballot to levy an increased special tax rate upon parcels within County Service Area No. 29 (CSA 29) for the purpose of funding ongoing maintenance dredging for ten years within Paradise Cay and the two entry channels to San Francisco Bay.

SUMMARY: Ongoing dredging in the principal waterways of CSA 29 is required to keep the marina in a navigable condition. The CSA 29 Advisory Board has proposed a new special tax measure to be placed on the ballot in the November 2026 election. In order for this measure to be placed on the ballot, the Board of Supervisors must approve a resolution in support of the proposal to increase the special tax rate by a 2/3 vote (Attachment 1). Tax revenue is currently $250,000 per year ($1,900.12 per lot) and increases by 3% annually. This tax was approved by CSA 29 voters in 2016 and will expire in fiscal year 2026 - 2027.

DISCUSSION / BACKGROUND: CSA 29 includes only waterfront parcels in Paradise Cay. It was formed in 1992 by election with the imposition of a ten-year special tax for the purpose of raising funding for the ongoing maintenance dredging of the waterways within Paradise Cay and the two entry channels to San Francisco Bay. In June, 2020 the Marin County Local Agency Formation Commission (LAFCo) completed a boundary change for

CSA 29 that eliminated 5 parcels which did not front the water and thus did not directly benefit from the special tax and 1 parcel that was fully within the water. LAFCo also added one parcel on which a home and dock had been constructed subsequent to the original formation. The LAFCo Certificate of Completion regarding this adjustment is attached (Attachment 2). This tax was most recently renewed by voters in 2016 increasing the parcel tax on each lot to $1,500 with increases limited to 3% annually beginning 2017. The current tax rate of $1,900.12 per parcel will sunset in fiscal year 2026-2027 at $1,957 per parcel and a new tax rate will need to be placed on the November 2026 ballot if maintenance is to continue.

The most recent dredging was completed in 2024 at a total cost of $1,288,811 including design, construction, and permitting.

The CSA 29 Advisory Board met on February 25, 2026 to discuss updating the previously approved special tax measure supporting dredging in the Service Area. Because dredging costs continue to increase, the advisory board has recommended a proposed special tax rate of $2,200, increasing annually by 3% to fund dredging twice over the next ten-year period. This proposal takes into account an estimated annual increase of 3% in construction costs and, if passed, will yield an estimated total of $3,278,669 in revenue over the ten-year period. This increase is necessary to raise sufficient funds to conduct dredging operations in the area.

POLICY FRAMEWORK: On November 8, 2016, Measure O was placed on the ballot to authorize a parcel tax for ongoing maintenance dredging in the principal waterways of Paradise Cay along with the north and south entry channels to San Francisco Bay. The previously adopted measure and resolution were voted on pursuant to the provisions of Elections Code Section 1002; Government Code Section 50077.5; and the Code of Civil Procedure Section 860.

EQUITY IMPACT SUMMARY: There is no impact to neighboring communities outside of the CSA 29 as a result of the adopted resolution.

COMMUNICATIONS & COMMUNITY ENGAGEMENT: An Advisory Board meeting accessible to the general public was held on February 25, 2026 for the purpose of deciding the proposed tax rate increase.

PERFORMANCE MEASURES: Tax revenue is currently $250,000 per year with the current tax rate of $1,900.12 per parcel. The CSA 29 will have collected a total of approximately $2.64 million by the sunset of the current measure in FY 26-27. The proposed special tax rate of $2,200 per parcel (and 3% annual rate of increases), will yield $3,278,669 in revenue over a ten-year period.

CONTRACT RENEWALS / PERFORMANCE OUTCOMES: This section is not applicable to this Staff Report.

CONTRACT RISKS: This section is not applicable to this Staff Report.

CEQA ANALYSIS: The proposed action to adopt a resolution calling for an election and authorizing placement of a special tax measure on the November 3, 2026 ballot is exempt from the California Environmental Quality Act (CEQA) because it does not constitute a

"project" as defined by CEQA. Under CEQA Guidelines Section 15378(b)(4) and (5), the creation of government funding mechanisms or other fiscal activities, as well as organizational or administrative actions that do not result in a direct or reasonably foreseeable indirect physical change in the environment, are not considered projects. The Board's action merely places a measure before the voters and does not approve or commit the County to any specific dredging activities or physical improvements.

Additionally, the action is exempt under CEQA Guidelines Section 15061(b)(3) ("common sense" exemption), as there is no possibility that placing a measure on the ballot may have a significant effect on the environment. Any future dredging activities funded by the measure would be subject to separate environmental review as required by CEQA.

Finally, the ongoing maintenance dredging activities are exempt from the California Environmental Quality Act (CEQA) under CEQA Guidelines Section 15301, Existing Facilities, specifically subsection (Class 1, §15301(d)), which includes the maintenance of existing waterways, channels, and similar facilities. The proposed work consists of routine, periodic dredging necessary to maintain previously dredged channels in a navigable condition and does not involve expansion of use or capacity. As such, the activity qualifies as a categorical exemption for maintenance of existing public facilities.

FISCAL, FACILITY & STAFFING ANALYSIS: There is no increase to the General Fund net County costs as a result of this action. If the Resolution is adopted and the Measure is approved by a two-thirds vote it will increase the CSA 29 Paradise Cay fund (3160) revenue appropriations by $3,278,669 over a ten-year period.

ALTERNATIVES: Do not adopt the Resolution and direct staff at the Board's discretion. If the Resolution is not adopted, the proposed special tax measure will not be placed on the November 3, 2026 ballot. As a result, voters within County Service Area No. 29 would not have the opportunity to consider or approve the proposed funding increase for ongoing dredging activities. Without renewal or replacement of the existing special tax, which is set to expire in Fiscal Year 2026–2027, CSA 29 would lose a critical revenue source, potentially resulting in insufficient funding to maintain navigable waterways and affecting marina access and operations.

ESTIMATED TIME (in minutes): No presentation

ATTACHMENTS:

Attachment 1 – Resolution

Attachment 2 – Advisory Board Minutes

Attachment 3 – Measure O

Attachment 4 – 2016 BOS Letter Election

Attachment 5 – CEQA Exemption

Attachment 6- CSA 29 Parcel Map